

# HOUSE . . . . . No. 2189

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## The Commonwealth of Massachusetts

PRESENTED BY:

*Christopher J. Worrell and Sean Garballey*

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to bereavement leave.

PETITION OF:

| NAME:                         | DISTRICT/ADDRESS:              | DATE ADDED:      |
|-------------------------------|--------------------------------|------------------|
| <i>Christopher J. Worrell</i> | <i>5th Suffolk</i>             | <i>1/9/2025</i>  |
| <i>Paul J. Donato</i>         | <i>35th Middlesex</i>          | <i>2/5/2025</i>  |
| <i>Bud L. Williams</i>        | <i>11th Hampden</i>            | <i>4/29/2025</i> |
| <i>James B. Eldridge</i>      | <i>Middlesex and Worcester</i> | <i>5/20/2025</i> |

# HOUSE . . . . . No. 2189

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By Representatives Worrell of Boston and Garballey of Arlington, a petition (accompanied by bill, House, No. 2189) of Christopher J. Worrell and Paul J. Donato relative to bereavement leave. Labor and Workforce Development.

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## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to bereavement leave.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Chapter 149 of the General Laws, as appearing in the 2022 Official Edition,  
2 is hereby amended by inserting after Section 52E, the following section:-

3           Section 52F. (a) As used in this section, the following words shall have the following  
4 meanings:-

5           “Bereavement”, leave from employment taken to grieve or make arrangements  
6 necessitated by the death of a family member.

7           “Family member,” the child, parent, guardian, sibling, spouse or person in a substantive  
8 dating or engagement relationship with an employee and who resides with that employee.

9           (b) An employer shall permit an employee to take bereavement leave following the death  
10 of a family member for up to 10 business days, used consecutively or non-consecutively, within  
11 any 12 month period to:

(1) Make arrangements necessitated by the death of the family member, including, but not limited to, funeral arrangements, estate preparation, or other legal arrangements;

(2) Attend the funeral or equivalent to a funeral of a family member; or

(3) Grieve the death of a family member.

(c) Leave permitted under this section must be initiated within 30 days of the date on which an employee receives notice of the death of a family member.

(d) An employer shall have the sole discretion to determine whether any leave taken under this section shall be paid or unpaid.

(e) Nothing in this section shall be construed so as to affect any bargaining agreement, company policy, or other federal, state, or municipal law which provides for greater or additional rights to leave than those provided for by this section.

(f) An employer may require documentation from an employee taking leave to deal with the death of a family member for any of the reasons specified in subsection (b). An employee can provide the employer any of the following documents to satisfy the request: (i) the name of the deceased, the date of death, the city of death and the employee's relationship to the deceased; (ii) a copy of the deceased's obituary or funeral program and the employee's relationship to the deceased; (iii) a copy of a police report involving the deceased; (iv) a copy of the death certificate; or (v) a document issued by the mental health care provider of the employee.

(g) Notwithstanding subsection (b), an employer employing fewer than 25 employees in the commonwealth shall not be required to comply with this section.

SECTION 2. This act shall take effect on January 1, 2027.